



File No.: EXP202317328

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 23, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in the procedure for the exercise of rights of file number EXP202208093, followed against CLÍNICA PARÍS, S.L. (hereinafter, the respondent).

In said file, it is recorded that the complainant exercised their right of access to the personal data concerning them, without said request being duly addressed, issuing a resolution that required the following:

“FIRST: TO ESTIMATE the complaint made by A.A.A. and to urge CLÍNICA PARÍS, S.L., with NIF B84873611, to send to the complainant, within ten working days following the notification of this resolution, a certification that addresses the exercised right of access or denies it with justification indicating the reasons why the request cannot be attended to, in accordance with what is established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could constitute the commission of the infringement considered in article 72.1.m) of the LOPDGDD, which will be sanctioned, in accordance with article 58.2 of the RGPD.”

SECOND: The notification of the resolution of the procedure for the exercise of rights, in which the respondent was granted a period of ten working days to address the exercise of the right of access, was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means, not being collected by the responsible party within the availability period, as recorded in the acknowledgment of receipt in the file, and therefore understood to have been made in accordance with the provisions of articles 43.2 and 41.5 of the LPACAP on February 6, 2023.

Although the notification was validly carried out by electronic means, for informational purposes, a copy of the resolution was sent by postal mail, which was returned to the sender by Correos as unknown on June 27, 2023, as recorded in the acknowledgment of receipt in the file, despite having been sent to the tax address provided by the State Agency for Tax Administration.

THIRD: After the period granted for the required actions in said resolution had elapsed and having received a written communication from the complainant, registered on June 13, 2023, with registration number C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/6

REGAGE23e00038482746, two requests were sent to the respondent to submit, within five working days, a certification of compliance with said resolution and, within ten working days, to notify this Agency of the measures adopted. In the second of the requests, a copy of the resolution from the rights exercise procedure of file number EXP202208093 was attached.

The notifications of said requests, registered with outgoing numbers REGAGE23s00057359512 and REGAGE23s00070688324 on August 28 and October 19, 2023, respectively, were carried out in accordance with the provisions established in the LPACAP through electronic means, not being collected by the responsible party within the availability period, as evidenced by the acknowledgments of receipt in the file, and therefore understood to have been made in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP dated September 8 and October 30, 2023.

FOURTH: After the period of the initial resolution and the subsequent requests had elapsed, the respondent has not submitted a response to this Agency that certifies that it has addressed the exercised right of access or that it has denied it with justification indicating the reasons why the request should not be attended to.

FIFTH: No ordinary administrative appeal can be made against the aforementioned resolution due to the expiration of the established deadlines for such. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed and that a precautionary suspension of the resolution has been requested.

SIXTH: According to the report collected from the AXESOR tool, the entity CLÍNICA PARÍS, S.L. is a company established in 2006 with a business volume of ***CANTIDAD.1 euros in the year 2020.

SEVENTH: On December 18, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

The initiation agreement was notified, in accordance with the provisions established in the LPACAP, through an announcement published in the Official State Gazette dated January 4, 2024, after the attempt at postal notification at the respondent's tax address proved unsuccessful, as evidenced in the file.

EIGHTH: Once the aforementioned initiation agreement was notified in accordance with the provisions established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In the present case, the agreement of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

The initiation of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The resolution of the procedure for the exercise of rights and the requirements for compliance with it indicated in the first, second, and third antecedents were notified in accordance with the provisions of the LPACAP. Said resolution became firm and enforceable due to the expiration of the deadlines for the filing of the appeals indicated therein.

SECOND: The respondent has not sent any response to this Agency that proves compliance with the resolution.

THIRD: The initiation agreement of the present sanctioning procedure was notified to the respondent, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette dated January 4, 2024, after the attempt at postal notification at the respondent's tax address proved unsuccessful.

FOURTH: The respondent has not submitted any allegations to the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the

guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/6

II

Obligation breached

In light of the facts presented, it is considered that the respondent has breached the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.2.c) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

c) to order the controller or processor to comply with the requests for the exercise of the data subject's rights under this Regulation;"

III

Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the limitation period for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) The failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Sanction imposed

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000.00 euros.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

V

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the

aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on CLÍNICA PARÍS, S.L., with NIF B84873611, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of 1,000.00 euros (ONE THOUSAND euros).

SECOND: TO REQUIRE CLÍNICA PARÍS, S.L., with NIF B84873611, that pursuant to Article 58.2.d) of the GDPR, within ten working days from the date this resolution becomes final and enforceable, to send to the complaining party a certification addressing the exercised right of access or to deny it with justification indicating the reasons why the request cannot be met, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202208093.

Furthermore, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: TO NOTIFY this resolution to CLÍNICA PARÍS, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must fulfill the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/6

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a reconsideration appeal before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party

expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be deemed concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es